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**Return of Private Foundation  
or Section 4947(a)(1) Nonexempt Charitable Trust  
Treated as a Private Foundation****2007**Department of the Treasury  
Internal Revenue Service**Note:** The foundation may be able to use a copy of this return to satisfy state reporting requirements**For calendar year 2007, or tax year beginning****, 2007, and ending****G** Check all that apply ☐ Initial return ☐ Final return ☐ Amended return ☐ Address change ☐ Name changeUse the  
IRS label.  
Otherwise,  
print  
or type.  
See Specific  
Instructions.Internet Archive  
116 Sheridan Avenue  
San Francisco, CA 94129**A** Employer identification number

94-3242767

**B** Telephone number (see the instructions)

415-561-6767

**C** If exemption application is pending, check here ☐**D 1** Foreign organizations, check here ☐**2** Foreign organizations meeting the 85% test, check here and attach computation ☐**E** If private foundation status was terminated under section 507(b)(1)(A), check here ☐**F** If the foundation is in a 60-month termination under section 507(b)(1)(B), check here ☐**H** Check type of organization. ☒ Section 501(c)(3) exempt private foundation  
☐ Section 4947(a)(1) nonexempt charitable trust ☐ Other taxable private foundation**I** Fair market value of all assets at end of year  
(from Part II, column (c), line 16)

▶ \$ 6,284,284.

**J** Accounting method: ☐ Cash ☒ Accrual  
☐ Other (specify) \_\_\_\_\_  
(Part I, column (d) must be on cash basis)**Part I Analysis of Revenue and Expenses**

(The total of amounts in columns (b), (c), and (d) may not necessarily equal the amounts in column (a) (see the instructions))

**(a)** Revenue and expenses per books**(b)** Net investment income**(c)** Adjusted net income**(d)** Disbursements for charitable purposes (cash basis only)

|                                              |                                                                             |                                                                     |             |            |            |          |
|----------------------------------------------|-----------------------------------------------------------------------------|---------------------------------------------------------------------|-------------|------------|------------|----------|
| <b>REVENUE</b>                               | 1                                                                           | Contributions, gifts, grants, etc, received (att sch)               | 4,868,754.  |            |            |          |
|                                              | 2                                                                           | Cl ▶ <input type="checkbox"/> if the foundn is not req to att Sch B |             |            |            |          |
|                                              | 3                                                                           | Interest on savings and temporary cash investments                  | 20,542.     | 20,542.    | 20,542.    |          |
|                                              | 4                                                                           | Dividends and interest from securities                              |             |            |            |          |
|                                              | 5a                                                                          | Gross rents                                                         |             |            |            |          |
|                                              | b                                                                           | Net rental income or (loss)                                         |             |            |            |          |
|                                              | 6a                                                                          | Net gain/(loss) from sale of assets not on line 10                  |             |            |            |          |
|                                              | b                                                                           | Gross sales price for all assets on line 6a                         |             |            |            |          |
|                                              | 7                                                                           | Capital gain net income (from Part IV, line 2)                      |             |            |            |          |
|                                              | 8                                                                           | Net short-term capital gain                                         |             |            |            |          |
|                                              | 9                                                                           | Income modifications                                                |             |            |            |          |
| <b>ADMINISTRATIVE AND OPERATING EXPENSES</b> | 10a                                                                         | Gross sales less returns and allowances                             |             |            |            |          |
|                                              | b                                                                           | Less: Cost of goods sold                                            |             |            |            |          |
|                                              | c                                                                           | Gross profit/(loss) (att sch)                                       |             |            |            |          |
|                                              | 11                                                                          | Other income (attach schedule)                                      | 9,019,868.  |            | 9,009,819. |          |
|                                              | 12                                                                          | <b>Total.</b> Add lines 1 through 11                                | 13,909,164. | 20,542.    | 9,030,361. |          |
|                                              | 13                                                                          | Compensation of officers, directors, trustees, etc                  | 68,070.     |            | 60,502.    | 7,568.   |
|                                              | 14                                                                          | Other employee salaries and wages                                   | 3,825,544.  |            | 3,308,651. | 516,893. |
|                                              | 15                                                                          | Pension plans, employee benefits                                    | 602,697.    |            | 564,608.   | 38,090.  |
|                                              | 16a                                                                         | Legal fees (attach schedule) See St 2                               | 253,068.    |            | 3,402.     | 249,666. |
|                                              | b                                                                           | Accounting fees (attach sch) See St 3                               | 17,030.     |            | 230.       | 16,800.  |
|                                              | c                                                                           | Other prof fees (attach sch) See St 4                               | 621,778.    |            | 552,650.   | 59,872.  |
| 17                                           | Interest                                                                    |                                                                     |             |            |            |          |
| 18                                           | Taxes (attach schedule) See Stmt 5                                          | 1,965.                                                              |             | 25.        | 1,940.     |          |
| 19                                           | Depreciation (attach sch) and depletion                                     | 35,627.                                                             |             | 35,627.    |            |          |
| 20                                           | Occupancy                                                                   | 809,109.                                                            |             | 681,239.   | 127,870.   |          |
| 21                                           | Travel, conferences, and meetings                                           | 310,453.                                                            |             | 289,307.   | 21,146.    |          |
| 22                                           | Printing and publications                                                   |                                                                     |             |            |            |          |
| 23                                           | Other expenses (attach schedule) See Statement 6                            | 3,632,261.                                                          | 423.        | 3,534,120. | 98,141.    |          |
| 24                                           | <b>Total operating and administrative expenses.</b> Add lines 13 through 23 | 10,177,602.                                                         | 423.        | 9,030,361. | 1,137,986. |          |
| 25                                           | Contributions, gifts, grants paid Part XV                                   | 829,658.                                                            |             |            | 829,658.   |          |
| 26                                           | <b>Total expenses and disbursements.</b> Add lines 24 and 25                | 11,007,260.                                                         | 423.        | 9,030,361. | 1,967,644. |          |
| 27                                           | Subtract line 26 from line 12:                                              |                                                                     |             |            |            |          |
| a                                            | <b>Excess of revenue over expenses and disbursements</b>                    | 2,901,904.                                                          |             |            |            |          |
| b                                            | <b>Net investment income</b> (if negative, enter -0-)                       |                                                                     | 20,119.     |            |            |          |
| c                                            | <b>Adjusted net income</b> (if negative, enter -0-)                         |                                                                     |             | 0.         |            |          |

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**Part II Balance Sheets**

Attached schedules and amounts in the description column should be for end-of-year amounts only (See instructions)

Beginning of year

End of year

|                                    |                                                                                                                                                       | (a) Book Value | (b) Book Value | (c) Fair Market Value |
|------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|----------------|-----------------------|
| <b>ASSETS</b>                      | 1 Cash – non-interest-bearing                                                                                                                         | 4,939.         | 7,737.         | 7,737.                |
|                                    | 2 Savings and temporary cash investments                                                                                                              | 234,453.       | 844,976.       | 844,976.              |
|                                    | 3 Accounts receivable <span>▶</span> 1,588,540.                                                                                                       |                |                |                       |
|                                    | Less: allowance for doubtful accounts <span>▶</span>                                                                                                  | 1,040,764.     | 1,588,540.     | 1,588,540.            |
|                                    | 4 Pledges receivable <span>▶</span>                                                                                                                   |                |                |                       |
|                                    | Less: allowance for doubtful accounts <span>▶</span>                                                                                                  |                |                |                       |
|                                    | 5 Grants receivable                                                                                                                                   | 900,000.       | 3,236,728.     | 3,236,728.            |
|                                    | 6 Receivables due from officers, directors, trustees, and other disqualified persons (attach schedule) (see the instructions)                         |                |                |                       |
|                                    | 7 Other notes and loans receivable (attach sch.) <span>▶</span>                                                                                       |                |                |                       |
|                                    | Less: allowance for doubtful accounts <span>▶</span>                                                                                                  |                |                |                       |
|                                    | 8 Inventories for sale or use                                                                                                                         |                |                |                       |
|                                    | 9 Prepaid expenses and deferred charges                                                                                                               | 253,823.       | 256,336.       | 256,336.              |
|                                    | 10 a Investments – U.S. and state government obligations (attach schedule)                                                                            |                |                |                       |
|                                    | b Investments – corporate stock (attach schedule)                                                                                                     |                |                |                       |
|                                    | c Investments – corporate bonds (attach schedule)                                                                                                     |                |                |                       |
| <b>LIABILITIES</b>                 | 11 Investments – land, buildings, and equipment: basis <span>▶</span>                                                                                 |                |                |                       |
|                                    | Less: accumulated depreciation (attach schedule) <span>▶</span>                                                                                       |                |                |                       |
|                                    | 12 Investments – mortgage loans                                                                                                                       |                |                |                       |
|                                    | 13 Investments – other (attach schedule)                                                                                                              |                |                |                       |
|                                    | 14 Land, buildings, and equipment: basis <span>▶</span> 351,112.                                                                                      |                |                |                       |
|                                    | Less: accumulated depreciation (attach schedule) <span>▶</span> See Stmt 7 <span>▶</span> 236,808.                                                    |                | 114,304.       | 114,304.              |
|                                    | 15 Other assets (describe <span>▶</span> See Statement 8 )                                                                                            | 314,387.       | 235,663.       | 235,663.              |
|                                    | 16 Total assets (to be completed by all filers – see instructions. Also, see page 1, item I)                                                          | 2,748,366.     | 6,284,284.     | 6,284,284.            |
|                                    | 17 Accounts payable and accrued expenses                                                                                                              | 224,102.       | 294,651.       |                       |
|                                    | 18 Grants payable                                                                                                                                     |                |                |                       |
|                                    | 19 Deferred revenue                                                                                                                                   | 1,019,465.     |                |                       |
|                                    | 20 Loans from officers, directors, trustees, & other disqualified persons                                                                             |                |                |                       |
|                                    | 21 Mortgages and other notes payable (attach schedule) Stmt 9                                                                                         |                | 600,000.       |                       |
|                                    | 22 Other liabilities (describe <span>▶</span> )                                                                                                       |                |                |                       |
|                                    | 23 Total liabilities (add lines 17 through 22)                                                                                                        | 1,243,567.     | 894,651.       |                       |
| <b>NET ASSETS OR FUND BALANCES</b> | Foundations that follow SFAS 117, check here and complete lines 24 through 26 and lines 30 and 31. <span>▶</span> <input checked="" type="checkbox"/> |                |                |                       |
|                                    | 24 Unrestricted                                                                                                                                       | 604,799.       | 2,989,071.     |                       |
|                                    | 25 Temporarily restricted                                                                                                                             | 900,000.       | 2,400,562.     |                       |
|                                    | 26 Permanently restricted                                                                                                                             |                |                |                       |
|                                    | Foundations that do not follow SFAS 117, check here and complete lines 27 through 31. <span>▶</span> <input type="checkbox"/>                         |                |                |                       |
|                                    | 27 Capital stock, trust principal, or current funds                                                                                                   |                |                |                       |
|                                    | 28 Paid-in or capital surplus, or land, building, and equipment fund                                                                                  |                |                |                       |
|                                    | 29 Retained earnings, accumulated income, endowment, or other funds                                                                                   |                |                |                       |
|                                    | 30 Total net assets or fund balances (see the instructions)                                                                                           | 1,504,799.     | 5,389,633.     |                       |
|                                    | 31 Total liabilities and net assets/fund balances (see the instructions)                                                                              | 2,748,366.     | 6,284,284.     |                       |

**Part III Analysis of Changes in Net Assets or Fund Balances**

|                                                                                                                                                              |   |            |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------|---|------------|
| 1 Total net assets or fund balances at beginning of year – Part II, column (a), line 30 (must agree with end-of-year figure reported on prior year's return) | 1 | 1,504,799. |
| 2 Enter amount from Part I, line 27a                                                                                                                         | 2 | 2,901,904. |
| 3 Other increases not included in line 2 (itemize) <span>▶</span> See Statement 10                                                                           | 3 | 982,930.   |
| 4 Add lines 1, 2, and 3                                                                                                                                      | 4 | 5,389,633. |
| 5 Decreases not included in line 2 (itemize) <span>▶</span>                                                                                                  | 5 |            |
| 6 Total net assets or fund balances at end of year (line 4 minus line 5) – Part II, column (b), line 30                                                      | 6 | 5,389,633. |

**Part IV Capital Gains and Losses for Tax on Investment Income**

| (a) List and describe the kind(s) of property sold (e.g., real estate, 2-story brick warehouse; or common stock, 200 shares MLC Company) |  | (b) How acquired<br>P — Purchase<br>D — Donation | (c) Date acquired<br>(month, day, year) | (d) Date sold<br>(month, day, year) |
|------------------------------------------------------------------------------------------------------------------------------------------|--|--------------------------------------------------|-----------------------------------------|-------------------------------------|
| 1a N/A                                                                                                                                   |  |                                                  |                                         |                                     |
| b                                                                                                                                        |  |                                                  |                                         |                                     |
| c                                                                                                                                        |  |                                                  |                                         |                                     |
| d                                                                                                                                        |  |                                                  |                                         |                                     |
| e                                                                                                                                        |  |                                                  |                                         |                                     |

| (e) Gross sales price | (f) Depreciation allowed<br>(or allowable) | (g) Cost or other basis<br>plus expense of sale | (h) Gain or (loss)<br>(e) plus (f) minus (g) |
|-----------------------|--------------------------------------------|-------------------------------------------------|----------------------------------------------|
| a                     |                                            |                                                 |                                              |
| b                     |                                            |                                                 |                                              |
| c                     |                                            |                                                 |                                              |
| d                     |                                            |                                                 |                                              |
| e                     |                                            |                                                 |                                              |

| Complete only for assets showing gain in column (h) and owned by the foundation on 12/31/69 |                                      |                                                     | (l) Gains (Column (h)<br>gain minus column (k), but not less<br>than -0-) or Losses (from column (h)) |
|---------------------------------------------------------------------------------------------|--------------------------------------|-----------------------------------------------------|-------------------------------------------------------------------------------------------------------|
| (i) Fair Market Value<br>as of 12/31/69                                                     | (j) Adjusted basis<br>as of 12/31/69 | (k) Excess of column (i)<br>over column (j), if any |                                                                                                       |
| a                                                                                           |                                      |                                                     |                                                                                                       |
| b                                                                                           |                                      |                                                     |                                                                                                       |
| c                                                                                           |                                      |                                                     |                                                                                                       |
| d                                                                                           |                                      |                                                     |                                                                                                       |
| e                                                                                           |                                      |                                                     |                                                                                                       |

|   |                                                                                                                  |                                                                                                              |   |  |
|---|------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------|---|--|
| 2 | Capital gain net income or (net capital loss)                                                                    | <div><div>If gain, also enter in Part I, line 7</div><div>If (loss), enter -0- in Part I, line 7</div></div> | 2 |  |
| 3 | Net short-term capital gain or (loss) as defined in sections 1222(5) and (6)                                     |                                                                                                              |   |  |
|   | If gain, also enter in Part I, line 8, column (c) (see the instructions). If (loss), enter -0- in Part I, line 8 |                                                                                                              | 3 |  |

**Part V Qualification Under Section 4940(e) for Reduced Tax on Net Investment Income**

(For optional use by domestic private foundations subject to the section 4940(a) tax on net investment income.)

If section 4940(d)(2) applies, leave this part blank.

Was the foundation liable for the section 4942 tax on the distributable amount of any year in the base period?

☐ Yes☒ No

If 'Yes,' the foundation does not qualify under section 4940(e). Do not complete this part.

1 Enter the appropriate amount in each column for each year, see the instructions before making any entries.

| (a) Base period years<br>Calendar year (or tax year<br>beginning in) | (b) Adjusted qualifying distributions | (c) Net value of<br>noncharitable-use assets | (d) Distribution ratio<br>(column (b) divided by column (c)) |
|----------------------------------------------------------------------|---------------------------------------|----------------------------------------------|--------------------------------------------------------------|
| 2006                                                                 | 4,744,784.                            | 389,586.                                     | 12.179041                                                    |
| 2005                                                                 | 4,124,133.                            | 202,665.                                     | 20.349508                                                    |
| 2004                                                                 | 4,621,809.                            | 182,036.                                     | 25.389533                                                    |
| 2003                                                                 | 2,965,907.                            | 289,799.                                     | 10.234359                                                    |
| 2002                                                                 | 4,107,992.                            | 417,902.                                     | 9.830037                                                     |

|                                                                                                                                                                                |   |            |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---|------------|
| 2 Total of line 1, column (d)                                                                                                                                                  | 2 | 77.982478  |
| 3 Average distribution ratio for the 5-year base period — divide the total on line 2 by 5, or by the number of years the foundation has been in existence if less than 5 years | 3 | 15.596496  |
| 4 Enter the net value of noncharitable-use assets for 2007 from Part X, line 5                                                                                                 | 4 | 451,717.   |
| 5 Multiply line 4 by line 3                                                                                                                                                    | 5 | 7,045,202. |
| 6 Enter 1% of net investment income (1% of Part I, line 27b)                                                                                                                   | 6 | 201.       |
| 7 Add lines 5 and 6                                                                                                                                                            | 7 | 7,045,403. |
| 8 Enter qualifying distributions from Part XII, line 4                                                                                                                         | 8 | 1,967,644. |

If line 8 is equal to or greater than line 7, check the box in Part VI, line 1b, and complete that part using a 1% tax rate. See the Part VI instructions.

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**Part VI Excise Tax Based on Investment Income (Section 4940(a), 4940(b), 4940(e), or 4948 – see the instructions)**

|                                                                                                                                                                                                                                 |    |      |      |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----|------|------|
| 1 a Exempt operating foundations described in section 4940(d)(2), check here <input type="checkbox"/> and enter 'N/A' on line 1.<br>Date of ruling letter: _____ (attach copy of ruling letter if necessary – see instructions) |    | 1    | 402. |
| b Domestic foundations that meet the section 4940(e) requirements in Part V, check here <input type="checkbox"/> and enter 1% of Part I, line 27b                                                                               |    |      |      |
| c All other domestic foundations enter 2% of line 27b. Exempt foreign organizations enter 4% of Part I, line 12, column (b)                                                                                                     |    |      |      |
| 2 Tax under section 511 (domestic section 4947(a)(1) trusts and taxable foundations only. Others enter -0-)                                                                                                                     |    | 2    | 0.   |
| 3 Add lines 1 and 2                                                                                                                                                                                                             |    | 3    | 402. |
| 4 Subtitle A (income) tax (domestic section 4947(a)(1) trusts and taxable foundations only. Others enter -0-)                                                                                                                   |    | 4    | 0.   |
| 5 <b>Tax based on investment income.</b> Subtract line 4 from line 3. If zero or less, enter -0-                                                                                                                                |    | 5    | 402. |
| 6 Credits/Payments.                                                                                                                                                                                                             |    |      |      |
| a 2007 estimated tax pmts and 2006 overpayment credited to 2007                                                                                                                                                                 | 6a | 593. |      |
| b Exempt foreign organizations – tax withheld at source                                                                                                                                                                         | 6b |      |      |
| c Tax paid with application for extension of time to file (Form 8868)                                                                                                                                                           | 6c |      |      |
| d Backup withholding erroneously withheld                                                                                                                                                                                       | 6d |      |      |
| 7 Total credits and payments. Add lines 6a through 6d                                                                                                                                                                           | 7  | 593. |      |
| 8 Enter any <b>penalty</b> for underpayment of estimated tax. Check here <input checked="" type="checkbox"/> if Form 2220 is attached                                                                                           | 8  |      |      |
| 9 <b>Tax due.</b> If the total of lines 5 and 8 is more than line 7, enter <b>amount owed</b>                                                                                                                                   | 9  | 0.   |      |
| 10 <b>Overpayment.</b> If line 7 is more than the total of lines 5 and 8, enter the <b>amount overpaid</b>                                                                                                                      | 10 | 191. |      |
| 11 Enter the amount of line 10 to be <b>Credited to 2008 estimated tax</b> <input type="checkbox"/> <b>Refunded</b> <input type="checkbox"/>                                                                                    | 11 | 0.   |      |

**Part VII-A Statements Regarding Activities**

|                                                                                                                                                                                                                                                                                                                                                       | Yes | No  |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|-----|
| 1 a During the tax year, did the foundation attempt to influence any national, state, or local legislation or did it participate or intervene in any political campaign?                                                                                                                                                                              |     | X   |
| 1 b Did it spend more than \$100 during the year (either directly or indirectly) for political purposes (see the instructions for definition)?<br><i>If the answer is 'Yes' to 1a or 1b, attach a detailed description of the activities and copies of any materials published or distributed by the foundation in connection with the activities</i> |     | X   |
| 1 c Did the foundation file <b>Form 1120-POL</b> for this year?                                                                                                                                                                                                                                                                                       |     | X   |
| d Enter the amount (if any) of tax on political expenditures (section 4955) imposed during the year:<br>(1) On the foundation <input type="checkbox"/> \$ 0. (2) On foundation managers <input type="checkbox"/> \$ 0.                                                                                                                                |     |     |
| e Enter the reimbursement (if any) paid by the foundation during the year for political expenditure tax imposed on foundation managers <input type="checkbox"/> \$ 0.                                                                                                                                                                                 |     |     |
| 2 Has the foundation engaged in any activities that have not previously been reported to the IRS?<br><i>If 'Yes,' attach a detailed description of the activities</i>                                                                                                                                                                                 |     | X   |
| 3 Has the foundation made any changes, not previously reported to the IRS, in its governing instrument, articles of incorporation, or bylaws, or other similar instruments? <i>If 'Yes,' attach a conformed copy of the changes</i>                                                                                                                   |     | X   |
| 4 a Did the foundation have unrelated business gross income of \$1,000 or more during the year?                                                                                                                                                                                                                                                       |     | X   |
| b If 'Yes,' has it filed a tax return on <b>Form 990-T</b> for this year?                                                                                                                                                                                                                                                                             |     | N/A |
| 5 Was there a liquidation, termination, dissolution, or substantial contraction during the year?<br><i>If 'Yes,' attach the statement required by General Instruction T</i>                                                                                                                                                                           |     | X   |
| 6 Are the requirements of section 508(e) (relating to sections 4941 through 4945) satisfied either:<br>• By language in the governing instrument, or<br>• By state legislation that effectively amends the governing instrument so that no mandatory directions that conflict with the state law remain in the governing instrument?                  | X   |     |
| 7 Did the foundation have at least \$5,000 in assets at any time during the year? <i>If 'Yes,' complete Part II, column (c), and Part XV</i>                                                                                                                                                                                                          | X   |     |
| 8 a Enter the states to which the foundation reports or with which it is registered (see the instructions)<br>CA                                                                                                                                                                                                                                      |     |     |
| b If the answer is 'Yes' to line 7, has the foundation furnished a copy of Form 990-PF to the Attorney General (or designate) of each state as required by <i>General Instruction G</i> ? <i>If 'No,' attach explanation</i>                                                                                                                          | X   |     |
| 9 Is the foundation claiming status as a private operating foundation within the meaning of section 4942(j)(3) or 4942(j)(5) for calendar year 2007 or the taxable year beginning in 2007 (see instructions for Part XIV)? <i>If 'Yes,' complete Part XIV</i>                                                                                         | X   |     |
| 10 Did any persons become substantial contributors during the tax year? <i>If 'Yes,' attach a schedule listing their names and addresses</i><br>See Statement 11                                                                                                                                                                                      | X   |     |

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**Part VII-A Statements Regarding Activities Continued**

|     |                                                                                                                                                                                                          |     |     |     |
|-----|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|-----|-----|
| 11a | At any time during the year, did the foundation, directly or indirectly, own a controlled entity within the meaning of section 512(b)(13)? If 'Yes', attach schedule. (see instructions) . . . .         | 11a |     | X   |
| b   | If 'Yes', did the foundation have a binding written contract in effect on August 17, 2006, covering the interest, rents, royalties, an annuities described in the attachment for line 11a?               | 11b | N/A |     |
| 12  | Did the foundation acquire a direct or indirect interest in any applicable insurance contract?                                                                                                           | 12  |     | X   |
| 13  | Did the foundation comply with the public inspection requirements for its annual returns and exemption application?<br>Website address <u>www.archive.org</u>                                            | 13  | X   |     |
| 14  | The books are in care of <u>Jacques Cressaty</u> Telephone no <u>415-561-6767</u><br>Located at <u>116 Sheridan Avenue San Francisco, CA</u> ZIP + 4 <u>94129</u>                                        |     |     |     |
| 15  | Section 4947(a)(1) nonexempt charitable trusts filing Form 990-PF in lieu of Form 1041 - Check here <u>N/A</u> and enter the amount of tax-exempt interest received or accrued during the year <u>15</u> |     |     | N/A |

**Part VII-B Statements Regarding Activities for Which Form 4720 May Be Required**

File Form 4720 if any item is checked in the 'Yes' column, unless an exception applies.

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Yes | No  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|-----|
| 1a During the year did the foundation (either directly or indirectly).                                                                                                                                                                                                                                                                                                                                                                                                                           |     |     |
| (1) Engage in the sale or exchange, or leasing of property with a disqualified person? <input type="checkbox"/> Yes <input checked="" type="checkbox"/> No                                                                                                                                                                                                                                                                                                                                       |     |     |
| (2) Borrow money from, lend money to, or otherwise extend credit to (or accept it from) a disqualified person? <input type="checkbox"/> Yes <input checked="" type="checkbox"/> No                                                                                                                                                                                                                                                                                                               |     |     |
| (3) Furnish goods, services, or facilities to (or accept them from) a disqualified person? <input checked="" type="checkbox"/> Yes <input type="checkbox"/> No                                                                                                                                                                                                                                                                                                                                   |     |     |
| (4) Pay compensation to, or pay or reimburse the expenses of, a disqualified person? <input checked="" type="checkbox"/> Yes <input type="checkbox"/> No                                                                                                                                                                                                                                                                                                                                         |     |     |
| (5) Transfer any income or assets to a disqualified person (or make any of either available for the benefit or use of a disqualified person)? <input type="checkbox"/> Yes <input checked="" type="checkbox"/> No                                                                                                                                                                                                                                                                                |     |     |
| (6) Agree to pay money or property to a government official? (Exception. Check 'No' if the foundation agreed to make a grant to or to employ the official for a period after termination of government service, if terminating within 90 days) <input type="checkbox"/> Yes <input checked="" type="checkbox"/> No                                                                                                                                                                               |     |     |
| b If any answer is 'Yes' to 1a(1)-(6), did any of the acts fail to qualify under the exceptions described in Regulations section 53.4941(d)-3 or in a current notice regarding disaster assistance (see the instructions)? Organizations relying on a current notice regarding disaster assistance check here <input type="checkbox"/>                                                                                                                                                           | 1b  | X   |
| c Did the foundation engage in a prior year in any of the acts described in 1a, other than excepted acts, that were not corrected before the first day of the tax year beginning in 2007?                                                                                                                                                                                                                                                                                                        | 1c  | X   |
| 2 Taxes on failure to distribute income (section 4942) (does not apply for years the foundation was a private operating foundation defined in section 4942(j)(3) or 4942(j)(5))                                                                                                                                                                                                                                                                                                                  |     |     |
| a At the end of tax year 2007, did the foundation have any undistributed income (lines 6d and 6e, Part XIII) for tax year(s) beginning before 2007? <input type="checkbox"/> Yes <input checked="" type="checkbox"/> No<br>If 'Yes,' list the years <u>20__</u> , <u>20__</u> , <u>20__</u> , <u>20__</u> .                                                                                                                                                                                      |     |     |
| b Are there any years listed in 2a for which the foundation is <b>not</b> applying the provisions of section 4942(a)(2) (relating to incorrect valuation of assets) to the year's undistributed income? (If applying section 4942(a)(2) to all years listed, answer 'No' and attach statement - see the instructions)                                                                                                                                                                            | 2b  | N/A |
| c If the provisions of section 4942(a)(2) are being applied to <b>any</b> of the years listed in 2a, list the years here <u>20__</u> , <u>20__</u> , <u>20__</u> , <u>20__</u> .                                                                                                                                                                                                                                                                                                                 |     |     |
| 3a Did the foundation hold more than a 2% direct or indirect interest in any business enterprise at any time during the year? <input type="checkbox"/> Yes <input checked="" type="checkbox"/> No                                                                                                                                                                                                                                                                                                |     |     |
| b If 'Yes,' did it have excess business holdings in 2007 as a result of (1) any purchase by the foundation or disqualified persons after May 26, 1969, (2) the lapse of the 5-year period (or longer period approved by the Commissioner under section 4943(c)(7)) to dispose of holdings acquired by gift or bequest, or (3) the lapse of the 10-, 15-, or 20-year first phase holding period? (Use Schedule C, Form 4720, to determine if the foundation had excess business holdings in 2007) | 3b  | N/A |
| 4a Did the foundation invest during the year any amount in a manner that would jeopardize its charitable purposes?                                                                                                                                                                                                                                                                                                                                                                               | 4a  | X   |
| b Did the foundation make any investment in a prior year (but after December 31, 1969) that could jeopardize its charitable purpose that had not been removed from jeopardy before the first day of the tax year beginning in 2007?                                                                                                                                                                                                                                                              | 4b  | X   |

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**Part VII-B Statements Regarding Activities for Which Form 4720 May Be Required** (continued)

5a During the year did the foundation pay or incur any amount to:

(1) Carry on propaganda, or otherwise attempt to influence legislation (section 4945(e))?

☐ Yes ☒ No

(2) Influence the outcome of any specific public election (see section 4955); or to carry on, directly or indirectly, any voter registration drive?

☐ Yes ☒ No

(3) Provide a grant to an individual for travel, study, or other similar purposes?

☐ Yes ☒ No

(4) Provide a grant to an organization other than a charitable, etc., organization described in section 509(a)(1), (2), or (3), or section 4940(d)(2)? (see instructions)

☒ Yes ☐ No

(5) Provide for any purpose other than religious, charitable, scientific, literary, or educational purposes, or for the prevention of cruelty to children or animals?

☐ Yes ☒ No

b If any answer is 'Yes' to 5a(1)-(5), did any of the transactions fail to qualify under the exceptions described in Regulations section 53.4945 or in a current notice regarding disaster assistance (see instructions)?

5b

X

Organizations relying on a current notice regarding disaster assistance check here

☐

c If the answer is 'Yes' to question 5a(4), does the foundation claim exemption from the tax because it maintained expenditure responsibility for the grant?

☒ Yes ☐ No

If 'Yes,' attach the statement required by Regulations section 53.4945-5(d) See Statement 12

6a Did the foundation, during the year, receive any funds, directly or indirectly, to pay premiums on a personal benefit contract?

☐ Yes ☒ No

b Did the foundation, during the year, pay premiums, directly or indirectly, on a personal benefit contract?

6b

X

If you answered 'Yes' to 6b, also file Form 8870

7a At any time during the tax year, was the foundation a party to a prohibited tax shelter transaction?

☐ Yes ☒ No

b If yes, did the foundation receive any proceeds or have any net income attributable to the transaction?

7b

N/A

**Part VIII Information About Officers, Directors, Trustees, Foundation Managers, Highly Paid Employees, and Contractors**

1 List all officers, directors, trustees, foundation managers and their compensation (see instructions).

| (a) Name and address                                                      | (b) Title and average hours per week devoted to position | (c) Compensation (If not paid, enter -0-) | (d) Contributions to employee benefit plans and deferred compensation | (e) Expense account, other allowances |
|---------------------------------------------------------------------------|----------------------------------------------------------|-------------------------------------------|-----------------------------------------------------------------------|---------------------------------------|
| <u>Rick Prelinger</u><br>116 Sheridan Avenue<br>San Francisco, CA 94129   | President<br>5.00                                        | 0.                                        | 0.                                                                    | 0.                                    |
| <u>Brewster Kahle</u><br>116 Sheridan Avenue<br>San Francisco, CA 94129   | Board Chair<br>40.00                                     | 0.                                        | 0.                                                                    | 0.                                    |
| <u>Kathleen Burch</u><br>116 Sheridan Avenue<br>San Francisco, CA 94129   | Secretary<br>1.00                                        | 0.                                        | 0.                                                                    | 0.                                    |
| <u>Jacques Cressaty</u><br>116 Sheridan Avenue<br>San Francisco, CA 94129 | Controller<br>30.00                                      | * 63,233.                                 | 4,837.                                                                | 0.                                    |

2 Compensation of five highest-paid employees (other than those included on line 1— see instructions). If none, enter 'NONE.'

| (a) Name and address of each employee paid more than \$50,000              | (b) Title and average hours per week devoted to position | (c) Compensation | (d) Contributions to employee benefit plans and deferred compensation | (e) Expense account, other allowances |
|----------------------------------------------------------------------------|----------------------------------------------------------|------------------|-----------------------------------------------------------------------|---------------------------------------|
| <u>Kristine Hanna</u><br>116 Sheridan Avenue<br>San Francisco, CA 94129    | Chief Technic<br>40                                      | 125,000.         | 7,653.                                                                | 0.                                    |
| <u>Roger Ajit Kumar</u><br>116 Sheridan Avenue<br>San Francisco, CA 94129  | Software Eng.<br>40                                      | 97,000.          | 7,247.                                                                | 0.                                    |
| <u>Tracey Jaguith</u><br>116 Sheridan Avenue<br>San Francisco, CA 94129    | Web Engineer<br>40                                       | 141,000.         | 7,885.                                                                | 0.                                    |
| <u>Gordon J. Mohr</u><br>116 Sheridan Avenue<br>San Francisco, CA 94129    | Chief Technic<br>40                                      | 120,000.         | 7,580.                                                                | 0.                                    |
| <u>Kristin Negulescu</u><br>116 Sheridan Avenue<br>San Francisco, CA 94129 | Software Eng.<br>40                                      | 150,000.         | 8,015.                                                                | 0.                                    |

Total number of other employees paid over \$50,000

25

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\*Compensation as Key Employee  
not as Board Member

**Part VIII Information About Officers, Directors, Trustees, Foundation Managers, Highly Paid Employees, and Contractors** (continued)**3** Five highest-paid independent contractors for professional services – (see instructions). If none, enter 'NONE.'

| (a) Name and address of each person paid more than \$50,000              | (b) Type of service | (c) Compensation |
|--------------------------------------------------------------------------|---------------------|------------------|
| Robert Miller<br>532 San Pedro Cove<br>San Rafael, CA 94901              | Dir. Book Group     | 197,000.         |
| Jim Shankland<br>41 Kellie Ann Court<br>Orinda, CA 94563                 | Computer Software   | 57,000.          |
|                                                                          |                     |                  |
|                                                                          |                     |                  |
|                                                                          |                     |                  |
| Total number of others receiving over \$50,000 for professional services |                     | 0                |

**Part IX-A Summary of Direct Charitable Activities**

List the foundation's four largest direct charitable activities during the tax year. Include relevant statistical information such as the number of organizations and other beneficiaries served, conferences convened, research papers produced, etc.

|                    | Expenses   |
|--------------------|------------|
| 1 See Statement 13 |            |
|                    | 1,415,309. |
| 2                  |            |
| 3                  |            |
| 4                  |            |

**Part IX-B Summary of Program-Related Investments** (see instructions)

| Describe the two largest program-related investments made by the foundation during the tax year on lines 1 and 2 | Amount |
|------------------------------------------------------------------------------------------------------------------|--------|
| 1 N/A                                                                                                            |        |
| 2                                                                                                                |        |
| All other program-related investments. See instructions.                                                         |        |
| 3                                                                                                                |        |
| Total. Add lines 1 through 3                                                                                     | 0.     |

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**Part X Minimum Investment Return** (All domestic foundations must complete this part. Foreign foundations, see instructions.)

|                                                                                                             |    |          |
|-------------------------------------------------------------------------------------------------------------|----|----------|
| 1 Fair market value of assets not used (or held for use) directly in carrying out charitable, etc, purposes |    |          |
| a Average monthly fair market value of securities                                                           | 1a |          |
| b Average of monthly cash balances                                                                          | 1b | 458,596. |
| c Fair market value of all other assets (see instructions)                                                  | 1c |          |
| d Total (add lines 1a, b, and c)                                                                            | 1d | 458,596. |
| e Reduction claimed for blockage or other factors reported on lines 1a and 1c (attach detailed explanation) | 1e | 0.       |
| 2 Acquisition indebtedness applicable to line 1 assets                                                      | 2  | 0.       |
| 3 Subtract line 2 from line 1d                                                                              | 3  | 458,596. |
| 4 Cash deemed held for charitable activities. Enter 1-1/2% of line 3 (for greater amount, see instructions) | 4  | 6,879.   |
| 5 Net value of noncharitable-use assets. Subtract line 4 from line 3. Enter here and on Part V, line 4      | 5  | 451,717. |
| 6 Minimum investment return. Enter 5% of line 5                                                             | 6  | 22,586.  |

**Part XI Distributable Amount** (see instructions) (Section 4942(j)(3) and (j)(5) private operating foundations and certain foreign organizations check here ☒ and do not complete this part.)

|                                                                                                    |     |    |  |
|----------------------------------------------------------------------------------------------------|-----|----|--|
| 1 Minimum investment return from Part X, line 6                                                    | N/A | 1  |  |
| 2a Tax on investment income for 2007 from Part VI, line 5                                          | 2a  |    |  |
| b Income tax for 2007 (This does not include the tax from Part VI)                                 | 2b  |    |  |
| c Add lines 2a and 2b                                                                              |     | 2c |  |
| 3 Distributable amount before adjustments Subtract line 2c from line 1                             |     | 3  |  |
| 4 Recoveries of amounts treated as qualifying distributions                                        |     | 4  |  |
| 5 Add lines 3 and 4                                                                                |     | 5  |  |
| 6 Deduction from distributable amount (see instructions)                                           |     | 6  |  |
| 7 Distributable amount as adjusted Subtract line 6 from line 5 Enter here and on Part XIII, line 1 |     | 7  |  |

**Part XII Qualifying Distributions** (see instructions)

|                                                                                                                                                        |    |            |
|--------------------------------------------------------------------------------------------------------------------------------------------------------|----|------------|
| 1 Amounts paid (including administrative expenses) to accomplish charitable, etc, purposes:                                                            |    |            |
| a Expenses, contributions, gifts, etc — total from Part I, column (d), line 26                                                                         | 1a | 1,967,644. |
| b Program-related investments — total from Part IX-B                                                                                                   | 1b |            |
| 2 Amounts paid to acquire assets used (or held for use) directly in carrying out charitable, etc, purposes                                             | 2  |            |
| 3 Amounts set aside for specific charitable projects that satisfy the:                                                                                 |    |            |
| a Suitability test (prior IRS approval required)                                                                                                       | 3a |            |
| b Cash distribution test (attach the required schedule)                                                                                                | 3b |            |
| 4 Qualifying distributions. Add lines 1a through 3b Enter here and on Part V, line 8, and Part XIII, line 4                                            | 4  | 1,967,644. |
| 5 Foundations that qualify under section 4940(e) for the reduced rate of tax on net investment income. Enter 1% of Part I, line 27b (see instructions) | 5  |            |
| 6 Adjusted qualifying distributions. Subtract line 5 from line 4                                                                                       | 6  | 1,967,644. |

**Note:** The amount on line 6 will be used in Part V, column (b), in subsequent years when calculating whether the foundation qualifies for the section 4940(e) reduction of tax in those years

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**Part XIII Undistributed Income** (see instructions)

N/A

|                                                                                                                                                                            | (a)<br>Corpus | (b)<br>Years prior to 2006 | (c)<br>2006 | (d)<br>2007 |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------|----------------------------|-------------|-------------|
| 1 Distributable amount for 2007 from Part XI, line 7                                                                                                                       |               |                            |             |             |
| 2 Undistributed income, if any, as of the end of 2006                                                                                                                      |               |                            |             |             |
| a Enter amount for 2006 only                                                                                                                                               |               |                            |             |             |
| b Total for prior years 20__, 20__, 20__                                                                                                                                   |               |                            |             |             |
| 3 Excess distributions carryover, if any, to 2007                                                                                                                          |               |                            |             |             |
| a From 2002                                                                                                                                                                |               |                            |             |             |
| b From 2003                                                                                                                                                                |               |                            |             |             |
| c From 2004                                                                                                                                                                |               |                            |             |             |
| d From 2005                                                                                                                                                                |               |                            |             |             |
| e From 2006                                                                                                                                                                |               |                            |             |             |
| f Total of lines 3a through e                                                                                                                                              |               |                            |             |             |
| 4 Qualifying distributions for 2007 from Part XII, line 4. ► \$                                                                                                            |               |                            |             |             |
| a Applied to 2006, but not more than line 2a                                                                                                                               |               |                            |             |             |
| b Applied to undistributed income of prior years (Election required – see instructions)                                                                                    |               |                            |             |             |
| c Treated as distributions out of corpus (Election required – see instructions)                                                                                            |               |                            |             |             |
| d Applied to 2007 distributable amount                                                                                                                                     |               |                            |             |             |
| e Remaining amount distributed out of corpus                                                                                                                               |               |                            |             |             |
| 5 Excess distributions carryover applied to 2007 (If an amount appears in column (d), the same amount must be shown in column (a) )                                        |               |                            |             |             |
| 6 Enter the net total of each column as indicated below:                                                                                                                   |               |                            |             |             |
| a Corpus Add lines 3f, 4c, and 4e Subtract line 5                                                                                                                          |               |                            |             |             |
| b Prior years' undistributed income. Subtract line 4b from line 2b                                                                                                         |               |                            |             |             |
| c Enter the amount of prior years' undistributed income for which a notice of deficiency has been issued, or on which the section 4942(a) tax has been previously assessed |               |                            |             |             |
| d Subtract line 6c from line 6b. Taxable amount – see instructions                                                                                                         |               |                            |             |             |
| e Undistributed income for 2006 Subtract line 4a from line 2a Taxable amount – see instructions                                                                            |               |                            |             |             |
| f Undistributed income for 2007. Subtract lines 4d and 5 from line 1. This amount must be distributed in 2008                                                              |               |                            |             |             |
| 7 Amounts treated as distributions out of corpus to satisfy requirements imposed by section 170(b)(1)(F) or 4942(g)(3) (see instructions)                                  |               |                            |             |             |
| 8 Excess distributions carryover from 2002 not applied on line 5 or line 7 (see instructions)                                                                              |               |                            |             |             |
| 9 Excess distributions carryover to 2008. Subtract lines 7 and 8 from line 6a                                                                                              |               |                            |             |             |
| 10 Analysis of line 9:                                                                                                                                                     |               |                            |             |             |
| a Excess from 2003                                                                                                                                                         |               |                            |             |             |
| b Excess from 2004                                                                                                                                                         |               |                            |             |             |
| c Excess from 2005                                                                                                                                                         |               |                            |             |             |
| d Excess from 2006                                                                                                                                                         |               |                            |             |             |
| e Excess from 2007                                                                                                                                                         |               |                            |             |             |

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**Part XIV Private Operating Foundations** (see instructions and Part VII-A, question 9)

**1** If the foundation has received a ruling or determination letter that it is a private operating foundation, and the ruling is effective for 2007, enter the date of the ruling 7/26/01

**b** Check box to indicate whether the foundation is a private operating foundation described in section ☒ 4942(j)(3) or ☐ 4942(j)(5)

**2a** Enter the lesser of the adjusted net income from Part I or the minimum investment return from Part X for each year listed

| Tax year                                                                                                                                          | Prior 3 years |            |            |            | (e) Total   |
|---------------------------------------------------------------------------------------------------------------------------------------------------|---------------|------------|------------|------------|-------------|
| (a) 2007                                                                                                                                          | (b) 2006      | (c) 2005   | (d) 2004   |            |             |
| 0.                                                                                                                                                | 19,479.       | 10,133.    | 2,394.     | 32,006.    |             |
| <b>b</b> 85% of line 2a                                                                                                                           | 16,557.       | 8,613.     | 2,035.     | 27,205.    |             |
| <b>c</b> Qualifying distributions from Part XII, line 4 for each year listed                                                                      | 1,967,644.    | 4,744,784. | 4,124,317. | 4,621,861. | 15,458,606. |
| <b>d</b> Amounts included in line 2c not used directly for active conduct of exempt activities                                                    | 829,658.      | 369,916.   | 315,811.   | 99,600.    | 1,614,985.  |
| <b>e</b> Qualifying distributions made directly for active conduct of exempt activities. Subtract line 2d from line 2c                            | 1,137,986.    | 4,374,868. | 3,808,506. | 4,522,261. | 13,843,621. |
| <b>3</b> Complete 3a, b, or c for the alternative test relied upon.                                                                               |               |            |            |            |             |
| <b>a</b> 'Assets' alternative test – enter.                                                                                                       |               |            |            |            |             |
| (1) Value of all assets                                                                                                                           |               |            |            |            |             |
| (2) Value of assets qualifying under section 4942(j)(3)(B)(i)                                                                                     |               |            |            |            |             |
| <b>b</b> 'Endowment' alternative test – enter 2/3 of minimum investment return shown in Part X, line 6 for each year listed                       | 15,057.       | 12,986.    | 6,755.     | 6,068.     | 40,866.     |
| <b>c</b> 'Support' alternative test – enter.                                                                                                      |               |            |            |            |             |
| (1) Total support other than gross investment income (interest, dividends, rents, payments on securities loans (section 512(a)(5)), or royalties) |               |            |            |            |             |
| (2) Support from general public and 5 or more exempt organizations as provided in section 4942(j)(3)(B)(iii)                                      |               |            |            |            |             |
| (3) Largest amount of support from an exempt organization                                                                                         |               |            |            |            |             |
| (4) Gross investment income                                                                                                                       |               |            |            |            |             |

**Part XV Supplementary Information** (Complete this part only if the organization had \$5,000 or more in assets at any time during the year – see instructions.)

**1 Information Regarding Foundation Managers:**

**a** List any managers of the foundation who have contributed more than 2% of the total contributions received by the foundation before the close of any tax year (but only if they have contributed more than \$5,000) (See section 507(d)(2).)

Brewster Kahle

**b** List any managers of the foundation who own 10% or more of the stock of a corporation (or an equally large portion of the ownership of a partnership or other entity) of which the foundation has a 10% or greater interest.

None

**2 Information Regarding Contribution, Grant, Gift, Loan, Scholarship, etc. Programs:**

Check here ☒ if the foundation only makes contributions to preselected charitable organizations and does not accept unsolicited requests for funds. If the foundation makes gifts, grants, etc. (see instructions) to individuals or organizations under other conditions, complete items 2a, b, c, and d.

**a** The name, address, and telephone number of the person to whom applications should be addressed:

**b** The form in which applications should be submitted and information and materials they should include:

**c** Any submission deadlines:

**d** Any restrictions or limitations on awards, such as by geographical areas, charitable fields, kinds of institutions, or other factors:

**Part XV** Supplementary Information (continued)**3** Grants and Contributions Paid During the Year or Approved for Future Payment

| Recipient<br>Name and address (home or business)                                            | If recipient is an individual,<br>show any relationship to<br>any foundation manager or<br>substantial contributor | Foundation<br>status of<br>recipient | Purpose of grant or<br>contribution | Amount   |
|---------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|--------------------------------------|-------------------------------------|----------|
| <i>a Paid during the year</i>                                                               |                                                                                                                    |                                      |                                     |          |
| UC Regents<br>102 South Hall<br>Berkeley, CA 94720                                          | N/A                                                                                                                | 509a1                                | Information Access<br>Project.      | 5,000.   |
| Internet Archive Canada<br>130 Saint George St., 7th Fl.<br>Toronto, Ontario M5S 1A5 Canada | N/A                                                                                                                | NGO                                  | Cost Sharing<br>Agreement           | 812,158. |
| Ryanishungry<br>3323 Los Prados #4<br>San Mateo, CA 94403                                   | N/A                                                                                                                | 509a1                                | General Support                     | 7,500.   |
| The Free History Project, Inc<br>1563 Solano Avenue, Box 197<br>Berkeley, CA 94707          | N/A                                                                                                                | 509a1                                | Grant for "Wikidoc"                 | 5,000.   |
| <b>Total</b>                                                                                |                                                                                                                    |                                      | <b>3a</b>                           | 829,658. |
| <i>b Approved for future payment</i>                                                        |                                                                                                                    |                                      |                                     |          |
| <b>Total</b>                                                                                |                                                                                                                    |                                      | <b>3b</b>                           |          |

## **Part XVI-A Analysis of Income-Producing Activities**

Enter gross amounts unless otherwise indicated.

| Enter gross amounts unless otherwise indicated. |                                                          | Unrelated business income |                               | Excluded by section 512, 513, or 514 |         | (e)<br>Related or exempt<br>function income<br>(see the instructions) |
|-------------------------------------------------|----------------------------------------------------------|---------------------------|-------------------------------|--------------------------------------|---------|-----------------------------------------------------------------------|
|                                                 | (a)<br>Business<br>code                                  | (b)<br>Amount             | (c)<br>Exclu-<br>sion<br>code | (d)<br>Amount                        |         |                                                                       |
| 1                                               | Program service revenue:                                 |                           |                               |                                      |         |                                                                       |
| a                                               | Fees for Services                                        |                           |                               |                                      |         | 9,009,819                                                             |
| b                                               |                                                          |                           |                               |                                      |         |                                                                       |
| c                                               |                                                          |                           |                               |                                      |         |                                                                       |
| d                                               |                                                          |                           |                               |                                      |         |                                                                       |
| e                                               |                                                          |                           |                               |                                      |         |                                                                       |
| f                                               |                                                          |                           |                               |                                      |         |                                                                       |
| g                                               | Fees and contracts from government agencies              |                           |                               |                                      |         |                                                                       |
| 2                                               | Membership dues and assessments                          |                           |                               |                                      |         |                                                                       |
| 3                                               | Interest on savings and temporary cash investments       |                           |                               | 14                                   | 20,542. |                                                                       |
| 4                                               | Dividends and interest from securities                   |                           |                               |                                      |         |                                                                       |
| 5                                               | Net rental income or (loss) from real estate             |                           |                               |                                      |         |                                                                       |
| a                                               | Debt-financed property                                   |                           |                               |                                      |         |                                                                       |
| b                                               | Not debt-financed property                               |                           |                               |                                      |         |                                                                       |
| 6                                               | Net rental income or (loss) from personal property       |                           |                               |                                      |         |                                                                       |
| 7                                               | Other investment income                                  |                           |                               |                                      |         |                                                                       |
| 8                                               | Gain or (loss) from sales of assets other than inventory |                           |                               |                                      |         |                                                                       |
| 9                                               | Net income or (loss) from special events                 |                           |                               |                                      |         |                                                                       |
| 10                                              | Gross profit or (loss) from sales of inventory           |                           |                               |                                      |         |                                                                       |
| 11                                              | Other revenue                                            |                           |                               |                                      |         |                                                                       |
| a                                               | Conference Fees                                          |                           |                               |                                      |         | 900.                                                                  |
| b                                               | Gain on currency exchange                                |                           |                               |                                      |         | 2,771.                                                                |
| c                                               | Honorarium                                               |                           |                               |                                      |         | 6,220.                                                                |
| d                                               | Miscellaneous Income                                     |                           |                               |                                      |         | 158.                                                                  |
| e                                               |                                                          |                           |                               |                                      |         |                                                                       |
| 12                                              | Subtotal. Add columns (b), (d), and (e)                  |                           |                               |                                      | 20,542. | 9,019,868.                                                            |
| 13                                              | Total. Add line 12, columns (b), (d), and (e)            |                           |                               |                                      | 13      | 9,040,410.                                                            |

(See worksheet in the instructions for line 13 to verify calculations.)

## **Part XVI-B Relationship of Activities to the Accomplishment of Exempt Purposes**

[illegible]



**Schedule B**  
**(Form 990, 990-EZ,**  
**or 990-PF)**

Department of the Treasury  
Internal Revenue Service

**Schedule of Contributors**

**Supplementary Information for**  
**line 1 of Form 990, 990-EZ and 990-PF (see instructions)**

OMB No 1545-0047

**2007**

Name of organization

Internet Archive

Employer identification number

94-3242767

Organization type (check one)

Filers of:

Form 990 or 990-EZ

Section:

- ☐ 501(c)( ) (enter number) organization  
☐ 4947(a)(1) nonexempt charitable trust **not** treated as a private foundation  
☐ 527 political organization

Form 990-PF

- ☒ 501(c)(3) exempt private foundation  
☐ 4947(a)(1) nonexempt charitable trust treated as a private foundation  
☐ 501(c)(3) taxable private foundation

Check if your organization is covered by the **General Rule** or a **Special Rule** (Note: Only a section 501(c)(7), (8), or (10) organization can check boxes for both the General Rule and a Special Rule – see instructions)

**General Rule –**

- ☒ For organizations filing Form 990, 990-EZ, or 990-PF that received, during the year, \$5,000 or more (in money or property) from any one contributor. (Complete Parts I and II)

**Special Rules –**

- ☐ For a section 501(c)(3) organization filing Form 990, or Form 990-EZ, that met the 33-1/3% support test of the regulations under sections 509(a)(1)/170(b)(1)(A)(vi) and received from any one contributor, during the year, a contribution of the greater of \$5,000 or 2% of the amount on line 1 of these forms (Complete Parts I and II)
- ☐ For a section 501(c)(7), (8), or (10) organization filing Form 990, or Form 990-EZ, that received from any one contributor, during the year, aggregate contributions or bequests of more than \$1,000 for use *exclusively* for religious, charitable, scientific, literary, or educational purposes, or the prevention of cruelty to children or animals (Complete Parts I, II, and III.)
- ☐ For a section 501(c)(7), (8), or (10) organization filing Form 990, or Form 990-EZ, that received from any one contributor, during the year, some contributions for use *exclusively* for religious, charitable, etc, purposes, but these contributions did not aggregate to more than \$1,000 (If this box is checked, enter here the total contributions that were received during the year for an *exclusively* religious, charitable, etc, purpose. Do not complete any of the Parts unless the **General Rule** applies to this organization because it received nonexclusively religious, charitable, etc, contributions of \$5,000 or more during the year.) ▶ \$

**Caution:** Organizations that are not covered by the General Rule and/or the Special Rules do not file Schedule B (Form 990, 990-EZ, or 990-PF) but they **must** check the box in the heading of their Form 990, Form 990-EZ, or on line 2 of their Form 990-PF, to certify that they do not meet the filing requirements of Schedule B (Form 990, 990-EZ, or 990-PF)

**BAA For Paperwork Reduction Act Notice, see the Instructions**  
**for Form 990, Form 990-EZ, and Form 990-PF.**

Schedule B (Form 990, 990-EZ, or 990-PF) (2007)

Name of organization

Employer identification number

Internet Archive

94-3242767

**Part I Contributors** (See Specific Instructions.)

| (a)<br>Number | (b)<br>Name, address, and ZIP + 4                                          | (c)<br>Aggregate<br>contributions | (d)<br>Type of contribution                                                                                                                                                  |
|---------------|----------------------------------------------------------------------------|-----------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1             | Kahle/Austin Foundation<br>513B Simonds Loop<br>San Francisco, CA 94129    | \$ 1,411,458.                     | Person <input checked="" type="checkbox"/><br>Payroll <input type="checkbox"/><br>Noncash <input type="checkbox"/><br>(Complete Part II if there is a noncash contribution.) |
| 2             | S. Leggett<br>PO Box 29244<br>San Francisco, CA 94129                      | \$ 10,000.                        | Person <input checked="" type="checkbox"/><br>Payroll <input type="checkbox"/><br>Noncash <input type="checkbox"/><br>(Complete Part II if there is a noncash contribution.) |
| 3             | Andrew W. Mellon Foundation<br>140 East 62nd Street<br>New York, NY 10065  | \$ 767,000.                       | Person <input checked="" type="checkbox"/><br>Payroll <input type="checkbox"/><br>Noncash <input type="checkbox"/><br>(Complete Part II if there is a noncash contribution.) |
| 4             | Elbaz Family Foundation<br>2029 Century Park East<br>Los Angeles, CA 90067 | \$ 50,000.                        | Person <input checked="" type="checkbox"/><br>Payroll <input type="checkbox"/><br>Noncash <input type="checkbox"/><br>(Complete Part II if there is a noncash contribution.) |
| 5             | Moore Foundation<br>508 Washington St Suite 12B<br>The Dalles, OR 97058    | \$ 1,493,795.                     | Person <input checked="" type="checkbox"/><br>Payroll <input type="checkbox"/><br>Noncash <input type="checkbox"/><br>(Complete Part II if there is a noncash contribution.) |
| 6             | USAC<br>100 South Jefferson Road<br>Whippany, NJ 07981                     | \$ 525,640.                       | Person <input checked="" type="checkbox"/><br>Payroll <input type="checkbox"/><br>Noncash <input type="checkbox"/><br>(Complete Part II if there is a noncash contribution.) |



Name of organization

Employer identification number

Internet Archive

94-3242767

**Part I** Contributors (See Specific Instructions.)

| (a)<br>Number | (b)<br>Name, address, and ZIP + 4                                 | (c)<br>Aggregate<br>contributions | (d)<br>Type of contribution                                                                                                                                                  |
|---------------|-------------------------------------------------------------------|-----------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 7             | California State Library<br>PO Box 942837<br>Sacramento, CA 94237 | \$ 342,925.                       | Person <input checked="" type="checkbox"/><br>Payroll <input type="checkbox"/><br>Noncash <input type="checkbox"/><br>(Complete Part II if there is a noncash contribution.) |
|               |                                                                   |                                   | Person <input type="checkbox"/><br>Payroll <input type="checkbox"/><br>Noncash <input type="checkbox"/><br>(Complete Part II if there is a noncash contribution.)            |
|               |                                                                   |                                   | Person <input type="checkbox"/><br>Payroll <input type="checkbox"/><br>Noncash <input type="checkbox"/><br>(Complete Part II if there is a noncash contribution.)            |
|               |                                                                   |                                   | Person <input type="checkbox"/><br>Payroll <input type="checkbox"/><br>Noncash <input type="checkbox"/><br>(Complete Part II if there is a noncash contribution.)            |
|               |                                                                   |                                   | Person <input type="checkbox"/><br>Payroll <input type="checkbox"/><br>Noncash <input type="checkbox"/><br>(Complete Part II if there is a noncash contribution.)            |
|               |                                                                   |                                   | Person <input type="checkbox"/><br>Payroll <input type="checkbox"/><br>Noncash <input type="checkbox"/><br>(Complete Part II if there is a noncash contribution.)            |
|               |                                                                   |                                   | Person <input type="checkbox"/><br>Payroll <input type="checkbox"/><br>Noncash <input type="checkbox"/><br>(Complete Part II if there is a noncash contribution.)            |

Name of organization

Internet Archive

Employer identification number

94-3242767

**Part II** Noncash Property (See Specific Instructions.)

| (a)<br>No. from<br>Part I | (b)<br>Description of noncash property given | (c)<br>FMV (or estimate)<br>(see instructions) | (d)<br>Date received |
|---------------------------|----------------------------------------------|------------------------------------------------|----------------------|
|                           | N/A                                          |                                                |                      |
|                           |                                              | \$                                             |                      |
|                           |                                              |                                                |                      |
|                           |                                              | \$                                             |                      |
|                           |                                              |                                                |                      |
|                           |                                              | \$                                             |                      |
|                           |                                              |                                                |                      |
|                           |                                              | \$                                             |                      |
|                           |                                              |                                                |                      |
|                           |                                              | \$                                             |                      |
|                           |                                              |                                                |                      |
|                           |                                              | \$                                             |                      |
|                           |                                              |                                                |                      |
|                           |                                              | \$                                             |                      |
|                           |                                              |                                                |                      |
|                           |                                              | \$                                             |                      |
|                           |                                              |                                                |                      |
|                           |                                              | \$                                             |                      |
|                           |                                              |                                                |                      |

BAA

Schedule B (Form 990, 990-EZ, or 990-PF) (2007)

Name of organization

Employer identification number

Internet Archive

94-3242767

**Part III Exclusively religious, charitable, etc., individual contributions to section 501(c)(7), (8), or (10) organizations aggregating more than \$1,000 for the year.** (Complete cols (a) through (e) and the following line entry.)For organizations completing Part III, enter total of *exclusively* religious, charitable, etc., contributions of \$1,000 or less for the year. (Enter this information once – see instructions.)

► \$ N/A

| (a)<br>No. from<br>Part I | (b)<br>Purpose of gift                  | (c)<br>Use of gift | (d)<br>Description of how gift is held   |
|---------------------------|-----------------------------------------|--------------------|------------------------------------------|
|                           | N/A                                     |                    |                                          |
|                           |                                         |                    |                                          |
|                           |                                         |                    |                                          |
|                           | (e)<br>Transfer of gift                 |                    |                                          |
|                           | Transferee's name, address, and ZIP + 4 |                    | Relationship of transferor to transferee |
|                           |                                         |                    |                                          |
|                           |                                         |                    |                                          |
|                           |                                         |                    |                                          |
|                           | (e)<br>Transfer of gift                 |                    |                                          |
|                           | Transferee's name, address, and ZIP + 4 |                    | Relationship of transferor to transferee |
|                           |                                         |                    |                                          |
|                           |                                         |                    |                                          |
|                           |                                         |                    |                                          |
|                           | (e)<br>Transfer of gift                 |                    |                                          |
|                           | Transferee's name, address, and ZIP + 4 |                    | Relationship of transferor to transferee |
|                           |                                         |                    |                                          |
|                           |                                         |                    |                                          |
|                           |                                         |                    |                                          |
|                           | (e)<br>Transfer of gift                 |                    |                                          |
|                           | Transferee's name, address, and ZIP + 4 |                    | Relationship of transferor to transferee |
|                           |                                         |                    |                                          |
|                           |                                         |                    |                                          |
|                           |                                         |                    |                                          |
|                           | (e)<br>Transfer of gift                 |                    |                                          |
|                           | Transferee's name, address, and ZIP + 4 |                    | Relationship of transferor to transferee |
|                           |                                         |                    |                                          |
|                           |                                         |                    |                                          |
|                           |                                         |                    |                                          |

**Statement 1**  
**Form 990-PF, Part I, Line 11**  
**Other Income**

|                           |           |                          |
|---------------------------|-----------|--------------------------|
| Conference Fees           | \$        | 900.                     |
| Gain on currency exchange |           | 2,771.                   |
| Honorarium                |           | 6,220.                   |
| Miscellaneous Income      |           | 158.                     |
| Program Service Revenue   |           | 9,009,819.               |
| <b>Total</b>              | <b>\$</b> | <b><u>9,019,868.</u></b> |

**Statement 2**  
**Form 990-PF, Part I, Line 16a**  
**Legal Fees**

|              | (a)<br>Expenses<br>Per Books | (b) Net<br>Investment<br>Income | (c)<br>Adjusted<br>Net Income | (d)<br>Charitable<br>Purposes |
|--------------|------------------------------|---------------------------------|-------------------------------|-------------------------------|
| Legal Fees   | \$ 253,068.                  |                                 | \$ 3,402.                     | \$ 249,666.                   |
| <b>Total</b> | <b>\$ <u>253,068.</u></b>    | <b>\$ <u>0.</u></b>             | <b>\$ <u>3,402.</u></b>       | <b>\$ <u>249,666.</u></b>     |

**Statement 3**  
**Form 990-PF, Part I, Line 16b**  
**Accounting Fees**

|                 | (a)<br>Expenses<br>per Books | (b) Net<br>Investment<br>Income | (c)<br>Adjusted<br>Net Income | (d)<br>Charitable<br>Purposes |
|-----------------|------------------------------|---------------------------------|-------------------------------|-------------------------------|
| Audit           | \$ 12,000.                   |                                 | \$ 230.                       | \$ 11,770.                    |
| Tax Preparation | 5,030.                       |                                 |                               | 5,030.                        |
| <b>Total</b>    | <b>\$ <u>17,030.</u></b>     | <b>\$ <u>0.</u></b>             | <b>\$ <u>230.</u></b>         | <b>\$ <u>16,800.</u></b>      |

**Statement 4**  
**Form 990-PF, Part I, Line 16c**  
**Other Professional Fees**

|                   | (a)<br>Expenses<br>per Books | (b) Net<br>Investment<br>Income | (c)<br>Adjusted<br>Net Income | (d)<br>Charitable<br>Purposes |
|-------------------|------------------------------|---------------------------------|-------------------------------|-------------------------------|
| Contractor's Fees | \$ 621,778.                  |                                 | \$ 552,650.                   | \$ 59,872.                    |
| <b>Total</b>      | <b>\$ <u>621,778.</u></b>    | <b>\$ <u>0.</u></b>             | <b>\$ <u>552,650.</u></b>     | <b>\$ <u>59,872.</u></b>      |

**Statement 5**  
**Form 990-PF, Part I, Line 18**  
**Taxes**

|              | (a)<br>Expenses<br>per Books | (b) Net<br>Investment<br>Income | (c)<br>Adjusted<br>Net Income | (d)<br>Charitable<br>Purposes |
|--------------|------------------------------|---------------------------------|-------------------------------|-------------------------------|
| Sales Tax    | \$ 882.                      |                                 |                               | \$ 882.                       |
| Taxes & Fees | 1,083.                       |                                 | \$ 25.                        | 1,058.                        |
| Total        | \$ 1,965.                    | \$ 0.                           | \$ 25.                        | \$ 1,940.                     |

**Statement 6**  
**Form 990-PF, Part I, Line 23**  
**Other Expenses**

|                             | (a)<br>Expenses<br>per Books | (b) Net<br>Investment<br>Income | (c)<br>Adjusted<br>Net Income | (d)<br>Charitable<br>Purposes |
|-----------------------------|------------------------------|---------------------------------|-------------------------------|-------------------------------|
| Bandwidth                   | \$ 510,093.                  |                                 | \$ 510,093.                   |                               |
| Bank Fees                   | 423.                         | \$ 423.                         | 296.                          | \$ 127.                       |
| Books and Publications      | 309.                         |                                 | 240.                          | 69.                           |
| Communications              | 39,216.                      |                                 | 27,482.                       | 11,734.                       |
| Dues, Subr, Memberships     | 3,834.                       |                                 | 2,982.                        | 852.                          |
| In-Kind Donation Exp        | 3,143.                       |                                 | 3,143.                        |                               |
| Insurance                   | 52,540.                      |                                 | 36,820.                       | 15,720.                       |
| Machines/ Servers           | 1,029,411.                   |                                 | 1,023,205.                    | 6,206.                        |
| Miscellaneous Hardware      | 209,140.                     |                                 | 209,140.                      |                               |
| Office Supplies             | 58,406.                      |                                 | 40,931.                       | 17,475.                       |
| Office Tech Support         | 1,354.                       |                                 | 949.                          | 405.                          |
| Postage and Delivery        | 32,900.                      |                                 | 23,056.                       | 9,844.                        |
| Printing and Reproduction   | 3,725.                       |                                 | 2,898.                        | 827.                          |
| Promotion and Advertising   | 34,740.                      |                                 | 27,023.                       | 7,717.                        |
| Recruiting                  | 14,304.                      |                                 | 11,126.                       | 3,178.                        |
| Repair and Maintenance      | 701.                         |                                 | 491.                          | 210.                          |
| Scanning                    | 1,417,097.                   |                                 | 1,417,097.                    |                               |
| Settlements                 | 7,500.                       |                                 | 5,834.                        | 1,666.                        |
| Shipping                    | 55,808.                      |                                 | 43,410.                       | 12,398.                       |
| Small Office Equip/Software | 14,137.                      |                                 | 10,997.                       | 3,140.                        |
| Staff Resources             | 29,590.                      |                                 | 23,017.                       | 6,573.                        |
| Technical Support           | 113,890.                     |                                 | 113,890.                      |                               |
| Total                       | \$ 3,632,261.                | \$ 423.                         | \$ 3,534,120.                 | \$ 98,141.                    |

**Statement 7**  
**Form 990-PF, Part II, Line 14**  
**Land, Buildings, and Equipment**

| Category                | Basis       | Accum.<br>Deprec. | Book<br>Value | Fair Market<br>Value |
|-------------------------|-------------|-------------------|---------------|----------------------|
| Furniture and Fixtures  | \$ 2,494.   | \$ 2,494.         | \$ 0.         | \$ 0.                |
| Machinery and Equipment | 170,481.    | 170,481.          | 0.            | 0.                   |
| Improvements            | 178,137.    | 63,833.           | 114,304.      | 114,304.             |
| Total                   | \$ 351,112. | \$ 236,808.       | \$ 114,304.   | \$ 114,304.          |

**Statement 8**  
**Form 990-PF, Part II, Line 15**  
**Other Assets**

|               | <u>Book Value</u>  | <u>Fair Market Value</u> |
|---------------|--------------------|--------------------------|
| Advance to CR | \$ 235,663.        | \$ 235,663.              |
| Total         | <u>\$ 235,663.</u> | <u>\$ 235,663.</u>       |

**Statement 9**  
**Form 990-PF, Part II, Line 21**  
**Mortgages and Other Notes Payable**

| <u>Other Notes Payable</u>             | <u>Balance Due</u> |
|----------------------------------------|--------------------|
| Lender's Name: Kahle Austin Foundation |                    |
| Date of Note: 9/29/2007                |                    |
| Maturity Date:                         |                    |
| Repayment Terms:                       |                    |
| Interest Rate:                         |                    |
| Security Provided:                     |                    |
| Purpose of Loan: Line of Credit        |                    |
| Desc. of Consideration:                |                    |
| FMV of Consideration: 0.               |                    |
| Original Amount: 1,200,000.            |                    |
| Balance Due:                           | \$ 600,000.        |
| Total Other Notes Payable              | <u>\$ 600,000.</u> |

**Statement 10**  
**Form 990-PF, Part III, Line 3**  
**Other Increases**

|                                                          |                    |
|----------------------------------------------------------|--------------------|
| Book to Tax Difference: P/Y Equipment Purchases Expensed | \$ 982,930.        |
| Total                                                    | <u>\$ 982,930.</u> |

**Statement 11**  
**Form 990-PF, Part VII-A, Line 10**  
**Substantial Contributors During the Tax Year**

| <u>Name of Substantial Contributor</u> | <u>Address of Substantial Contributor</u>       |
|----------------------------------------|-------------------------------------------------|
| Kahle/Austin Foundation                | 513B Simonds Loop<br>San Francisco, CA 94129    |
| Andrew W. Mellon Foundation            | 140 East 62nd Street<br>New York, NY 10065      |
| Elbaz Family Foundation                | 2029 Century Park East<br>Los Angeles, CA 90067 |

**Statement 11 (continued)**  
**Form 990-PF, Part VII-A, Line 10**  
**Substantial Contributors During the Tax Year**

Moore Foundation

508 Washington Street, Ste 12B  
 The Dalles, OR 97058

**Statement 12**  
**Form 990-PF, Part VII-B, Line 5c**  
**Expenditure Responsibility**

|                              |                                                                                                |
|------------------------------|------------------------------------------------------------------------------------------------|
| Grantee Name:                | Internet Archive Canada                                                                        |
| Address:                     | 130 Saint George St, 7th Floor                                                                 |
| Address:                     | Toronto, Ontario M5S 1A5 Canada                                                                |
| Grant Date:                  | Various                                                                                        |
| Grant Amount:                | \$ 812158                                                                                      |
| Grant Purpose:               | Continuing Grant Agreement/Resource Sharing Agreement                                          |
| Amt. Expended by Grantee:    | \$ 812158                                                                                      |
| Any Diversion by Grantee:    | No                                                                                             |
| Dates of Reports by Grantee: | 12/7/2007                                                                                      |
| Date of Verification:        | 12/07/2007                                                                                     |
| Results of Verification:     | The grantor has no reason to doubt the accuracy or reliability of the report from the grantee. |

**Statement 13**  
**Form 990-PF, Part IX-A, Line 1**  
**Summary of Direct Charitable Activities**

| <u>Direct Charitable Activities</u>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | <u>Expenses</u>      |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------|
| <p>The Internet Archive is building an "internet library" with the purpose of offering permanent access for researchers, historians and scholars to historical collections that exist in digital format. In late 1999, the organization started to include more well-rounded collections. Now the Internet Archive includes texts, audio, moving images and software as well as archived pages in its collections.</p> <p>In this way, the Internet Archive is working to prevent the Internet, a new medium with historical significance, and other "born-digital" materials from disappearing into the past. Collaborating with other institutions, including the Library of Congress and the Smithsonian, the organization is working to preserve a record for generations to come.</p> | <p>\$ 1,415,309.</p> |





- If you are filing for an **Additional (not automatic) 3-Month Extension**, complete only **Part II** and check this box ☒

**Note.** Only complete Part II if you have already been granted an automatic 3-month extension on a previously filed Form 8868

- If you are filing for an **Automatic 3-Month Extension**, complete only **Part I** (on page 1).

**Part II Additional (not automatic) 3-Month Extension of Time.** You must file original and one copy.

|                                                                                            |                                                                                                                           |                                                     |
|--------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------|
| Type or print<br><br>File by the extended due date for filing the return. See instructions | Name of Exempt Organization<br><b>Internet Archive</b>                                                                    | Employer identification number<br><b>94-3242767</b> |
|                                                                                            | Number, street, and room or suite number. If a P.O. box, see instructions<br><b>116 Sheridan Avenue</b>                   | For IRS use only                                    |
|                                                                                            | City, town or post office, state, and ZIP code. For a foreign address, see instructions<br><b>San Francisco, CA 94129</b> |                                                     |

**Check type of return to be filed** (File a separate application for each return)

- |                                      |                                                                      |                                      |                                    |
|--------------------------------------|----------------------------------------------------------------------|--------------------------------------|------------------------------------|
| <input type="checkbox"/> Form 990    | <input checked="" type="checkbox"/> Form 990-PF                      | <input type="checkbox"/> Form 1041-A | <input type="checkbox"/> Form 6069 |
| <input type="checkbox"/> Form 990-BL | <input type="checkbox"/> Form 990-T (section 401(a) or 408(a) trust) | <input type="checkbox"/> Form 4720   | <input type="checkbox"/> Form 8870 |
| <input type="checkbox"/> Form 990-EZ | <input type="checkbox"/> Form 990-T (trust other than above)         | <input type="checkbox"/> Form 5227   |                                    |

**STOP! Do not complete Part II if you were not already granted an automatic 3-month extension on a previously filed Form 8868.**

- The books are in care of **Jacques Cressaty**  
Telephone No. **415-561-6767** FAX No. \_\_\_\_\_
- If the organization does not have an office or place of business in the United States, check this box ☐
- If this is for a Group Return, enter the organization's four digit Group Exemption Number (GEN) \_\_\_\_\_ If this is for the whole group, check this box ☐. If it is for part of the group, check this box ☐ and attach a list with the names and EINs of all members the extension is for.

- 4 I request an additional 3-month extension of time until **11/15**, 20 **08**
- 5 For calendar year **2007**, or other tax year beginning \_\_\_\_\_, 20\_\_\_\_, and ending \_\_\_\_\_, 20\_\_\_\_
- 6 If this tax year is for less than 12 months, check reason ☐ Initial return ☐ Final return ☐ Change in accounting period
- 7 State in detail why you need the extension **The Organization requires additional time to gather the information necessary to file a complete and accurate return.**

|                                                                                                                                                                                                                                    |       |      |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------|------|
| 8a If this application is for Form 990-BL, 990-PF, 990-T, 4720, or 6069, enter the tentative tax, less any nonrefundable credits. See instructions                                                                                 | 8a \$ | 0.   |
| b If this application is for Form 990-PF, 990-T, 4720, or 6069, enter any refundable credits and estimated tax payments made. Include any prior year overpayment allowed as a credit and any amount paid previously with Form 8868 | 8b \$ | 593. |
| c <b>Balance Due.</b> Subtract line 8b from line 8a. Include your payment with this form, or, if required, deposit with FTD coupon or, if required, by using EFTPS (Electronic Federal Tax Payment System). See instrs             | 8c \$ | 0.   |

**Signature and Verification**

Under penalties of perjury, I declare that I have examined this form, including accompanying schedules and statements, and to the best of my knowledge and belief, it is true, correct, and complete, and that I am authorized to prepare this form

Signature **Carol Duffield** Title **CPA** Date **8/8/08**

**Notice to Applicant. (To be Completed by the IRS)**

- ☐ We have approved this application. Please attach this form to the organization's return
- ☐ We have not approved this application. However, we have granted a 10-day grace period from the later of the date shown below or the due date of the organization's return (including any prior extensions). This grace period is considered to be a valid extension of time for elections otherwise required to be made on a timely filed return. Please attach this form to the organization's return
- ☐ We have not approved this application. After considering the reasons stated in item 7, we cannot grant your request for an extension of time to file. We are not granting a 10-day grace period.
- ☐ We cannot consider this application because it was filed after the extended due date of the return for which an extension was requested
- ☐ Other \_\_\_\_\_

Director \_\_\_\_\_ By \_\_\_\_\_ Date \_\_\_\_\_

**Alternate Mailing Address.** Enter the address if you want the copy of this application for an additional 3-month extension returned to an address different than the one entered above

|               |                                                                                                                              |
|---------------|------------------------------------------------------------------------------------------------------------------------------|
| Type or Print | Name<br><b>Fontanello, Duffield &amp; Otake, LLP</b>                                                                         |
|               | Number and street (include suite, room, or apartment number) or a P.O. box number<br><b>44 Montgomery Street, Suite 2019</b> |
|               | City or town, province or state, and country (including postal or ZIP code)<br><b>San Francisco, CA 94104</b>                |
|               |                                                                                                                              |

**Application for Extension of Time To File an  
Exempt Organization Return**

OMB No 1545-1709

► File a separate application for each return

- If you are filing for an **Automatic 3-Month Extension**, complete only **Part I** and check this box ☒
- If you are filing for an **Additional (not automatic) 3-Month Extension**, complete only **Part II** (on page 2 of this form).

**Do not complete Part II unless** you have already been granted an automatic 3-month extension on a previously filed Form 8868**Part I Automatic 3-Month Extension of Time.** Only submit original (no copies needed).Section 501(c) corporations required to file Form 990-T and requesting an automatic 6-month extension — check this box and complete Part I only ☐*All other corporations (including 1120-C filers), partnerships, REMICS, and trusts must use Form 7004 to request an extension of time to file income tax returns*

**Electronic Filing (e-file).** Generally, you can electronically file Form 8868 if you want a 3-month automatic extension of time to file one of the returns noted below (6 months for section 501(c) corporations required to file Form 990-T). However, you cannot file Form 8868 electronically if (1) you want the additional (not automatic) 3-month extension or (2) you file Forms 990-BL, 6069, or 8870, group returns, or a composite or consolidated Form 990-T. Instead, you must submit the fully completed and signed page 2 (Part II) of Form 8868. For more details on the electronic filing of this form, visit [www.irs.gov/efile](http://www.irs.gov/efile) and click on *e-file for Charities & Nonprofits*

**Type or  
print**File by the  
due date for  
filing your  
return. See  
instructions

Name of Exempt Organization

Internet Archive

Employer identification number

94-3242767

Number, street, and room or suite number. If a P.O. box, see instructions

116 Sheridan Avenue

City, town or post office, state, and ZIP code. For a foreign address, see instructions

San Francisco, CA 94129

**Check type of return to be filed** (file a separate application for each return).

- |                                                 |                                                                      |                                    |
|-------------------------------------------------|----------------------------------------------------------------------|------------------------------------|
| <input type="checkbox"/> Form 990               | <input type="checkbox"/> Form 990-T (corporation)                    | <input type="checkbox"/> Form 4720 |
| <input type="checkbox"/> Form 990-BL            | <input type="checkbox"/> Form 990-T (section 401(a) or 408(a) trust) | <input type="checkbox"/> Form 5227 |
| <input type="checkbox"/> Form 990-EZ            | <input type="checkbox"/> Form 990-T (trust other than above)         | <input type="checkbox"/> Form 6069 |
| <input checked="" type="checkbox"/> Form 990-PF | <input type="checkbox"/> Form 1041-A                                 | <input type="checkbox"/> Form 8870 |

- The books are in the care of ► Jacques Cressaty

Telephone No. ► 415-561-6767 FAX No. ► \_\_\_\_\_

- If the organization does not have an office or place of business in the United States, check this box ☐
- If this is for a Group Return, enter the organization's four digit Group Exemption Number (GEN) \_\_\_\_\_ If this is for the whole group, check this box ☐ If it is for part of the group, check this box ☐ and attach a list with the names and EINs of all members the extension will cover.

- 1 I request an automatic 3-month (6 months for a section 501(c) corporation required to file Form 990-T) extension of time until 8/15, 20 08, to file the exempt organization return for the organization named above.  
The extension is for the organization's return for:

- ☒ calendar year 20 07 or
- ☐ tax year beginning \_\_\_\_\_, 20 \_\_\_\_\_, and ending \_\_\_\_\_, 20 \_\_\_\_\_.

- 2 If this tax year is for less than 12 months, check reason: ☐ Initial return ☐ Final return ☐ Change in accounting period

|                                                                                                                                                                                                                               |           |         |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|---------|
| <b>3a</b> If this application is for Form 990-BL, 990-PF, 990-T, 4720, or 6069, enter the tentative tax, less any nonrefundable credits. See instructions.                                                                    | <b>3a</b> | \$ 402. |
| <b>b</b> If this application is for Form 990-PF or 990-T, enter any refundable credits and estimated tax payments made. Include any prior year overpayment allowed as a credit.                                               | <b>3b</b> | \$ 593. |
| <b>c Balance Due.</b> Subtract line 3b from line 3a. Include your payment with this form, or, if required, deposit with FTD coupon or, if required, by using EFTPS (Electronic Federal Tax Payment System). See instructions. | <b>3c</b> | \$ 0.   |

**Caution.** If you are going to make an electronic fund withdrawal with this Form 8868, see Form 8453-EO and Form 8879-EO for payment instructions**BAA For Privacy Act and Paperwork Reduction Act Notice, see instructions.**Form **8868** (Rev 4-2007)